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24 June 2008

Mr. Ed Snell, Superintendent
Kings River Union Elementary School District
3961 Avenue 400
Kingsburg, CA 93631

NOTICE OF APPLICABILITY

WATER QUALITY ORDER NO. 97-10-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, KINGS RIVER UNION ELEMENTARY SCHOOL DISTRICT, ONSITE WASTEWATER TREATMENT SYSTEM, TULARE COUNTY

Kings River Union Elementary School District submitted a Report of Waste Discharge (RWD) for coverage of a septic system at Kings River Union Elementary under Water Quality Order No. 97-10-DWQ, *General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (hereafter General Order). The RWD consists of a Form 200 and a \$872.00 filing fee. Because the subject domestic discharge is less than 50,000 gallons per day (gpd), it is eligible for a 50 percent discount of the initial filing fee and subsequent annual fees. Staff intends to process a refund of a portion of the filing fee to reflect the discount as soon as feasible. The RWD contains all the technical information required; therefore, the RWD is complete.

Based on the information provided in the RWD, the discharge meets the conditions of the General Order. All the requirements contained within the General Order described as applicable to "All Small Domestic Systems," and "Subsurface Disposal Systems" apply to your onsite wastewater treatment and disposal system (onsite system). You are hereby assigned General Order No. 97-10-DWQ-R5013.

PROJECT LOCATION

The septic system is located in Tulare County, in Township T16S Range R23E in the northeast one-quarter corner of Section 29.

The onsite system is in the Tulare Lake Basin. The *Water Quality Control Plan for the Tulare Lake Basin, Second Edition* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

The Regional Board's policy regarding the design and operation of onsite systems is described in the enclosed *Guidelines for Waste Disposal from Land Developments* (hereafter Guidelines), which are incorporated in the Basin Plan.

PROJECT DESCRIPTION

Kings River Union Elementary has numerous septic, leachfield systems. These systems will be replaced with a new septic system with a projected volume of 10,182 gallons per day.

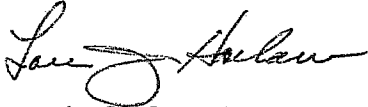
This NOA regulates the septic system at Kings River Union Elementary and its discharge of domestic wastewater to land.

FACILITY-SPECIFIC REQUIREMENTS

1. Discharge of wastewater at a location or in a manner different from that described in the RWD is prohibited.
2. The existing onsite system shall be operated as described in the RWD and in accordance with the requirements contained in the General Order and in the enclosed *Guidelines for Waste Disposal from Land Developments*, whichever are more stringent.
3. Prior to initiating discharge to the onsite system, the Discharger shall submit a technical report certifying that the onsite system was constructed in accordance with the RWD and is capable of complying with the General Order and this NOA. The technical report is subject to the requirements of Facility-Specific Requirement 5 and is subject to Executive Officer written approval.
4. As a means for determining compliance with General Order Requirement B.3, the Discharger shall include in each annual report (**due 15 January**) a copy of a log documenting the quantity and method of disposal of all solids (e.g., screenings and sludge) removed from the onsite system during the previous calendar year.
5. All technical reports required herein that involve evaluation, or other work requiring interpretation and proper application of engineering or geologic sciences, shall be prepared by or under the direction of persons registered to practice in California pursuant to California Business and Professions Code, sections 6735, 7835, and 7835.1. To demonstrate compliance with Title 16, California Code of Regulations, sections 415 and 3065, all technical reports must contain a statement of the qualifications of the responsible registered professional(s). As required by these laws, completed technical reports must bear the signature(s) and seal(s) of the registered professional(s) in a manner such that all work can be clearly attributed to the professional responsible for the work.
6. The Discharger shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board) until the NOA is officially terminated.

7. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its supplemental monitoring and reporting requirements, could result in enforcement actions as authorized by provisions of the California Water Code.

If you have any questions regarding this NOA or associated fees, contact Denise M. Soria at (559) 444-2488.



for Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ
 Guidelines for Waste Disposal from Land Developments

